



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2621: public schools; special education; access

GRESS FLOOR AMENDMENT

Pupils Residing in an Unorganized Territory

1. Specifies the parent of a pupil who resides in an unorganized territory may request a Child Find screening, a special education evaluation or enrollment in the adjoining school district *that is geographically closest to the pupil's residence*.
2. Modifies requirements for a program that provides early intervention services relating to the process for transitioning a pupil from Part C to Part B of the Individuals with Disabilities Education Act (IDEA).
3. Details authorizations and requirements relating to enrollment procedures for a parent and an adjoining school district that is geographically closest to the residence of the pupil.
4. Specifies the school district that is responsible for all Child Find activities and for conducting a special education evaluation of a pupil who is parentally placed in a private school or attends a homeschool.
5. Removes the requirement for the Arizona Department of Education (ADE) to investigate any substantiated claims or complaints that allege a person is violating requirements relating to the pupils residing in unorganized territory.
6. Defines *special education evaluation*.

Certificates of Educational Convenience (CECs)

7. Details CEC application submission requirements for a school district.
8. Prohibits a school district that receives a request for enrollment or a CEC application from delaying Child Find activities, parental consent for a special education evaluation or timelines under federal regulations because a CEC application is processing.
9. Requires each county school superintendent, before FY 2028, to make publicly available a CEC application form and instructions for submitting the application form.
10. Narrows the CEC application form and supporting documentation requirements to school districts that adjoin an unorganized territory.

11. Requires ADE to ensure that the CEC dispute resolution process does not limit or delay a pupil's or parent's access to the state complaint process or due process procedures under the IDEA.
12. Asserts specified individuals are not precluded from submitting a CEC application for the pupil to the county school superintendent.

Child of a Parent on Active Military Duty

13. Defines *parent*.

GRESS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2621
(Reference to EDUCATION S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Title 15, chapter 7, article 4, Arizona Revised
4 Statutes, is amended by adding section 15-768, to read:

5 15-768. Pupils residing in unorganized territory; definitions

6 A. THE PARENT OF A PUPIL WHO RESIDES IN AN UNORGANIZED TERRITORY
7 MAY ~~[CONTACT AN ADJOINING SCHOOL DISTRICT TO]~~ REQUEST A CHILD FIND
8 SCREENING, A SPECIAL EDUCATION EVALUATION OR ENROLLMENT OF THE PUPIL IN
9 THE ~~[ADJOINING]~~ SCHOOL DISTRICT ~~[THAT IS GEOGRAPHICALLY CLOSEST TO THE~~
10 ~~PUPIL'S RESIDENCE]~~. A SCHOOL DISTRICT THAT ~~[IS CONTACTED]~~ ~~[RECEIVES A~~
11 ~~REQUEST]~~ PURSUANT TO THIS SUBSECTION IS RESPONSIBLE FOR ALL CHILD FIND
12 ACTIVITIES FOR THAT PUPIL. IF A PARENT OF A PUPIL WHO IS A CHILD WITH A
13 DISABILITY AS DEFINED IN SECTION 15-761 ~~[CONTACTS A SCHOOL DISTRICT~~
14 ~~PURSUANT TO THIS SUBSECTION TO REQUEST]~~ ~~[REQUESTS]~~ ENROLLMENT OF THE PUPIL
15 IN ~~[THE]~~ ~~[A]~~ SCHOOL DISTRICT ~~[PURSUANT TO THIS SUBSECTION]~~, THE SCHOOL
16 DISTRICT IS RESPONSIBLE FOR PROVIDING A FREE APPROPRIATE PUBLIC EDUCATION
17 TO THE PUPIL.

18 B. EACH PROGRAM THAT PROVIDES EARLY INTERVENTION SERVICES PURSUANT
19 TO PART C OF THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT (20 UNITED
20 STATES CODE SECTIONS 1401 THROUGH 1485) TO PUPILS WHO RESIDE IN
21 UNORGANIZED TERRITORIES SHALL INITIATE THE PROCESS FOR TRANSITIONING THE
22 PUPILS FROM PART C TO PART B OF THE INDIVIDUALS WITH DISABILITIES
23 EDUCATION ACT BY ~~[CONTACTING THE COUNTY SCHOOL SUPERINTENDENT OF THE~~
24 ~~COUNTY IN WHICH THE PUPIL RESIDES WHEN THE PUPIL IS AT LEAST THIRTY MONTHS~~
25 ~~BUT FEWER THAN THIRTY-THREE MONTHS OLD. NOT LATER THAN FIVE BUSINESS DAYS~~
26 ~~AFTER A PROGRAM CONTACTS A COUNTY SCHOOL SUPERINTENDENT PURSUANT TO THIS~~
27 ~~SUBSECTION, THE COUNTY SCHOOL SUPERINTENDENT SHALL ASSIGN AN ADJOINING~~
28 ~~SCHOOL DISTRICT TO BE RESPONSIBLE FOR CONDUCTING A FULL AND INDIVIDUAL~~
29 ~~INITIAL EVALUATION OF THE PUPIL ON OR]~~ ~~[NOTIFYING THE DEPARTMENT OF~~
30 ~~EDUCATION AND REFERRING THE PUPIL TO THE ADJOINING SCHOOL DISTRICT THAT IS~~
31 ~~GEOGRAPHICALLY CLOSEST TO THE PUPIL'S RESIDENCE FOR A PART B EVALUATION~~
32 ~~AND TRANSITION AT LEAST NINETY DAYS]~~ BEFORE THE PUPIL'S THIRD BIRTHDAY

1 ~~[AND SHALL NOTIFY THE SCHOOL DISTRICT, THE PROGRAM AND THE PUPIL'S PARENT~~
2 ~~OF THE ASSIGNMENT. THE COUNTY SCHOOL SUPERINTENDENT SHALL ASSIGN THE~~
3 ~~ADJOINING SCHOOL DISTRICT THAT IS GEOGRAPHICALLY CLOSEST TO THE PUPIL'S~~
4 ~~RESIDENCE]. [IF A PROGRAM DETERMINES THAT A PUPIL WHO RESIDES IN AN~~
5 ~~UNORGANIZED TERRITORY IS ELIGIBLE FOR EARLY INTERVENTION SERVICES PURSUANT~~
6 ~~TO PART C OF THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT MORE THAN~~
7 ~~FORTY-FIVE DAYS BUT FEWER THAN NINETY DAYS BEFORE THE PUPIL'S THIRD~~
8 ~~BIRTHDAY, THE PROGRAM SHALL INITIATE THE PROCESS FOR TRANSITIONING THE~~
9 ~~PUPIL FROM PART C TO PART B OF THE INDIVIDUALS WITH DISABILITIES ACT~~
10 ~~PURSUANT TO THIS SUBSECTION AS SOON AS POSSIBLE. CONSISTENT WITH FEDERAL~~
11 ~~LAW.]~~

12 C. IF THE ~~[ADJOINING]~~ SCHOOL DISTRICT THAT IS ~~[ASSIGNED PURSUANT~~
13 ~~TO]~~ ~~[GEOGRAPHICALLY CLOSEST TO THE RESIDENCE OF A PUPIL DESCRIBED IN]~~
14 ~~SUBSECTION B OF THIS SECTION CONDUCTS [AN] [A SPECIAL EDUCATION]~~
15 ~~EVALUATION OF THE PUPIL AND DETERMINES THAT[.]~~

16 ~~1.]~~ THE PUPIL IS ELIGIBLE FOR SPECIAL EDUCATION AND RELATED
17 SERVICES UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT,
18 THE PUPIL'S PARENTS MAY REQUEST ENROLLMENT OF THE PUPIL IN THE SCHOOL
19 DISTRICT ~~[THAT IS ASSIGNED PURSUANT TO SUBSECTION B OF THIS SECTION OR IN~~
20 ~~A DIFFERENT ADJOINING SCHOOL DISTRICT]~~ ~~[AT ANY TIME AND THE SCHOOL~~
21 ~~DISTRICT SHALL INFORM THE PUPIL'S PARENT THAT THE PUPIL'S PARENT MAY~~
22 ~~REQUEST ENROLLMENT OF THE PUPIL]. ON RECEIPT OF A REQUEST FOR ENROLLMENT~~
23 ~~PURSUANT TO THIS SUBSECTION, A SCHOOL DISTRICT SHALL PREPARE A CERTIFICATE~~
24 ~~OF EDUCATIONAL CONVENIENCE APPLICATION FOR THE PUPIL AS PRESCRIBED BY~~
25 ~~SECTION 15-825 AND OFFER A FREE APPROPRIATE PUBLIC EDUCATION TO THE PUPIL.~~

26 ~~[2. THE PUPIL IS NOT ELIGIBLE FOR SPECIAL EDUCATION AND RELATED~~
27 ~~SERVICES UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT~~
28 ~~AND THE PUPIL IS SCHOOL-AGED, THE PUPIL'S PARENTS MAY REQUEST ENROLLMENT OF~~
29 ~~THE PUPIL IN ANY ADJOINING SCHOOL DISTRICT PURSUANT TO SECTION 15-825.]~~

30 D. ~~[IF]~~ A PUPIL ~~[WHO]~~ RESIDES IN AN UNORGANIZED TERRITORY AND ~~[WHO]~~
31 EITHER IS PARENTALLY PLACED IN A PRIVATE SCHOOL OR ATTENDS A HOMESCHOOL~~[.~~
32 ~~THE FOLLOWING APPLY]:~~

33 1. ~~[THE PUPIL]~~ RETAINS THE ~~[FOLLOWING RIGHTS:~~

34 (a) ~~[THE]~~ RIGHTS ESTABLISHED BY 20 UNITED STATES CODE SECTION 1412,
35 INCLUDING THE RIGHTS TO BE IDENTIFIED, LOCATED AND EVALUATED FOR
36 ELIGIBILITY UNDER THE PART B OF THE INDIVIDUALS WITH DISABILITIES
37 EDUCATION ACT.

38 ~~[2. RETAINS]~~ ~~[(b)]~~ THE RIGHT TO EQUITABLE SERVICES UNDER
39 PROPORTIONATE SHARE FUNDING PURSUANT TO 34 CODE OF FEDERAL REGULATIONS
40 SECTIONS 300.130 THROUGH 300.144.

41 ~~[2. THE SCHOOL DISTRICT THAT IS RESPONSIBLE FOR ALL CHILD FIND~~
42 ~~ACTIVITIES AND FOR CONDUCTING A SPECIAL EDUCATION EVALUATION FOR THE PUPIL~~
43 ~~IS:~~

44 (a) ~~[IF]~~ THE PUPIL IS PARENTALLY PLACED IN A NONPROFIT PRIVATE SCHOOL
45 ~~THAT IS LOCATED WITHIN THE BOUNDARIES OF A SCHOOL DISTRICT. THE SCHOOL~~
46 ~~DISTRICT IN WHICH THE PRIVATE SCHOOL IS LOCATED.~~

1 (b) IF THE PUPIL IS PARENTALLY PLACED IN A NONPROFIT PRIVATE SCHOOL
2 THAT IS LOCATED IN AN UNORGANIZED TERRITORY, THE ADJOINING SCHOOL DISTRICT
3 THAT IS GEOGRAPHICALLY CLOSEST TO THE PRIVATE SCHOOL.

4 (c) IF THE PUPIL ATTENDS A HOMESCHOOL OR IS PARENTALLY PLACED IN A
5 PRIVATE SCHOOL THAT IS NOT A NONPROFIT, THE ADJOINING SCHOOL DISTRICT THAT
6 IS GEOGRAPHICALLY CLOSEST TO THE PUPIL'S RESIDENCE.]

7 ~~[E.] [3.] [THE PARENTS OF A PUPIL WHO RESIDES IN AN UNORGANIZED~~
8 ~~TERRITORY,]~~ [IF THE PUPIL] HAS BEEN FOUND TO BE ELIGIBLE FOR SPECIAL
9 EDUCATION OR RELATED SERVICES UNDER PART B OF THE INDIVIDUALS WITH
10 DISABILITIES EDUCATION ACT ~~[AND EITHER IS PARENTALLY PLACED IN A PRIVATE~~
11 ~~SCHOOL OR ATTENDS A HOMESCHOOL MAY CONTACT ANY ONE ADJOINING SCHOOL~~
12 ~~DISTRICT TO]~~ [, THE PUPIL'S PARENTS MAY] REQUEST ~~[FROM THE SCHOOL DISTRICT~~
13 ~~THAT IS RESPONSIBLE FOR THE PUPIL PURSUANT TO PARAGRAPH 2 OF THIS~~
14 ~~SUBSECTION EITHER OR BOTH OF THE FOLLOWING]:~~

15 ~~[1.] [(a)] AN EVALUATION PURSUANT TO 20 UNITED STATES CODE SECTION~~
16 ~~1412(a)(3)(A).~~

17 ~~[2.] [(b)] A MEETING TO DISCUSS EQUITABLE SERVICES AND THE~~
18 ~~DEVELOPMENT OF A SERVICE PLAN PURSUANT TO 34 CODE OF FEDERAL REGULATIONS~~
19 ~~SECTIONS 300.130 THROUGH 300.144.~~

20 ~~[F. THE DEPARTMENT SHALL:~~

21 ~~1. INVESTIGATE ANY SUBSTANTIATED CLAIMS OR COMPLAINTS THAT THE~~
22 ~~DEPARTMENT RECEIVES THAT ALLEGE THAT A PERSON IS VIOLATING THIS SECTION.~~

23 ~~2. ANNUALLY COMPILE A REPORT REGARDING INVESTIGATIONS AND ANY~~
24 ~~CORRECTIVE ACTIONS TAKEN IN THE IMMEDIATELY PRECEDING YEAR AND POST THE~~
25 ~~REPORT ON THE DEPARTMENT'S WEBSITE.]~~

26 ~~[G.] [E.] FOR THE PURPOSES OF THIS SECTION:~~

27 1. "CHILD FIND ACTIVITIES" MEANS STATE OBLIGATIONS PURSUANT TO 20
28 UNITED STATES CODE SECTION 1412(a)(3), THE FEDERAL REGULATIONS ISSUED
29 PURSUANT TO THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT AND THE RULES
30 ADOPTED BY THE STATE BOARD OF EDUCATION RELATING TO THE IDENTIFICATION AND
31 REFERRAL OF CHILDREN WITH DISABILITIES BY PUBLIC SCHOOLS.

32 2. "FREE APPROPRIATE PUBLIC EDUCATION" HAS THE SAME MEANING
33 PRESCRIBED IN 20 UNITED STATES CODE SECTION 1401.

34 ~~[4.] [3.] "HOMESCHOOL" HAS THE SAME MEANING PRESCRIBED IN SECTION~~
35 ~~15-802.~~

36 ~~[5.] [4.] "UNORGANIZED TERRITORY" HAS THE SAME MEANING PRESCRIBED~~
37 ~~IN SECTION 15-825.~~

38 ~~[6.] [5.] "RELATED SERVICES" HAS THE SAME MEANING PRESCRIBED IN 20~~
39 ~~UNITED STATES CODE SECTION 1401.~~

40 ~~[7.] [6.] "SPECIAL EDUCATION" HAS THE SAME MEANING PRESCRIBED IN~~
41 ~~20 UNITED STATES CODE SECTION 1401.~~

42 ~~[3.] [7.] "[FULL AND INDIVIDUAL INITIAL] [SPECIAL EDUCATION]~~
43 ~~EVALUATION" MEANS AN EVALUATION CONDUCTED PURSUANT TO SECTION 15-766 [AND~~
44 ~~RULES ADOPTED BY THE STATE BOARD OF EDUCATION].~~

1 Sec. 2. Section 15-816, Arizona Revised Statutes, is amended to
2 read:

3 15-816. Definitions

4 In this article, unless the context otherwise requires:

5 1. "Nonresident pupil" means a pupil who resides in this state and
6 who is enrolled in or is seeking enrollment in a school district other
7 than the school district in which the pupil resides.

8 2. "Open enrollment" means a policy that is adopted and implemented
9 by a school district governing board to allow resident transfer pupils to
10 enroll in any school within the school district, to allow resident pupils
11 to enroll in any school located within other school districts in this
12 state and to allow nonresident pupils to enroll in any school within the
13 district pursuant to section 15-816.01.

14 3. "Resident pupil" means a pupil WHO MEETS ANY OF THE FOLLOWING:

15 (a) Whose residence is within the attendance area of a school.

16 (b) WHO RESIDES IN AN UNORGANIZED TERRITORY AS DEFINED IN SECTION
17 15-825 AND WHOSE RESIDENCE ADJOINS A BOUNDARY OF THE SCHOOL DISTRICT.

18 (c) WHO RESIDES IN AN UNORGANIZED TERRITORY AS DEFINED IN SECTION
19 15-825 AND WHOSE RESIDENCE IS LOCATED ON TRIBAL LAND.

20 (d) WHO IS PLACED AS DESCRIBED IN SECTION 15-825, SUBSECTION B.

21 4. "Resident school" means a school that is within the designated
22 attendance area in which a pupil resides.

23 5. "Resident transfer pupil" means a resident pupil who is enrolled
24 in or seeking enrollment in a school that is within the school district
25 but outside the attendance area of the pupil's residence.

26 Sec. 3. Section 15-823.01, Arizona Revised Statutes, is amended to
27 read:

28 15-823.01. Admission of nonresident children; services or
29 accommodations for children with disabilities;
30 active military duty; posting requirement;
31 definitions

32 A. Notwithstanding any other law, a ~~pupit~~ CHILD complies with the
33 residency requirements for school attendance in a local education agency
34 OR FOR SERVICES OR ACCOMMODATIONS if the parent of the ~~pupit~~ CHILD is
35 transferred to or is pending transfer to a military installation within
36 this state while on active military duty pursuant to an official military
37 order.

38 B. A local education agency shall accept an application for
39 enrollment and course registration by ~~electronic~~ ANY means, INCLUDING BY
40 ELECTRONIC MEANS OR A REMOTE APPLICATION, for a pupil who meets the
41 requirements prescribed in subsection A of this section, including
42 enrollment in a specific school or program within the local education
43 agency.

44 C. The parent of a ~~pupit~~ CHILD who meets the requirement prescribed
45 in subsection A of this section shall provide proof of ~~residence~~ RESIDENCY
46 to the local education agency within ten days after the arrival date
47 provided on official documentation. The parent may use the address of any

1 of the following as proof of ~~residence~~ RESIDENCY for the purposes of this
2 subsection:

3 1. A temporary on-base billeting facility.

4 2. TEMPORARY OFF-BASE LODGING.

5 ~~2-~~ 3. A purchased or leased home or apartment.

6 ~~3-~~ 4. Any federal government housing or off-base military housing,
7 including off-base military housing that may be provided through a
8 public-private venture.

9 5. ANY OTHER TEMPORARY HOUSING.

10 D. IF A SCHOOL DISTRICT IS NOTIFIED THAT A CHILD WHO MEETS THE
11 REQUIREMENT PRESCRIBED IN SUBSECTION A OF THIS SECTION IS RECEIVING OR
12 MIGHT BE ELIGIBLE TO RECEIVE SERVICES OR ACCOMMODATIONS, THE SCHOOL
13 DISTRICT SHALL:

14 1. PROMPTLY COORDINATE WITH THE CHILD'S PARENTS AND THE CHILD'S
15 PREVIOUS SCHOOL, IF ANY, PURSUANT TO SECTION 15-1911 TO ENSURE THE TIMELY
16 EXCHANGE OF RECORDS AND TO REDUCE ANY DELAYS IN THE CHILD RECEIVING
17 COMPARABLE SERVICES OR ACCOMMODATIONS THROUGH THE SCHOOL DISTRICT OR
18 DELAYS IN THE IMPLEMENTATION OF AN INDIVIDUALIZED FAMILY SERVICE PLAN,
19 INDIVIDUALIZED EDUCATION PROGRAM OR SECTION 504 PLAN AS DEFINED IN SECTION
20 15-731.

21 2. ACCEPT UNOFFICIAL RECORDS THAT ARE PROVIDED BY THE CHILD'S
22 PARENT, PENDING VALIDATION BY THE OFFICIAL RECORDS, PURSUANT TO SECTION
23 15-1911, ARTICLE IV, SUBSECTION A.

24 3. ON ENROLLMENT OF THE CHILD PURSUANT TO SUBSECTION B OF THIS
25 SECTION:

26 (a) PROVIDE THE CHILD WITH SERVICES OR ACCOMMODATIONS THAT ARE
27 COMPARABLE TO THE SERVICES OR ACCOMMODATIONS THAT ARE DESCRIBED IN THE
28 CHILD'S PREVIOUSLY APPROVED INDIVIDUALIZED EDUCATION PROGRAM OR SECTION
29 504 PLAN AS DEFINED IN SECTION 15-731, IN CONSULTATION WITH THE CHILD'S
30 PARENTS, UNTIL THE SCHOOL DISTRICT CONDUCTS AN ASSESSMENT OR DEVELOPS A
31 NEW INDIVIDUALIZED EDUCATION PROGRAM, IF APPROPRIATE.

32 (b) EITHER ADOPT AND IMPLEMENT THE CHILD'S PREVIOUSLY APPROVED
33 INDIVIDUALIZED EDUCATION PROGRAM OR DEVELOP, ADOPT AND IMPLEMENT A NEW
34 INDIVIDUALIZED EDUCATION PROGRAM FOR THE CHILD NOT LATER THAN THIRTY
35 CALENDAR DAYS AFTER THE CHILD ENROLLS IN THE SCHOOL DISTRICT.

36 E. THE DEPARTMENT OF EDUCATION SHALL POST INFORMATION ON THE
37 REQUIREMENTS OF THIS SECTION, INCLUDING REQUIREMENTS RELATING TO
38 ELIGIBILITY AND REQUIRED DOCUMENTATION, ON THE DEPARTMENT'S WEBSITE.

39 ~~D-~~ F. For the purposes of this section:

40 1. "Active military duty" means full-time military duty status in
41 the active uniformed service of the United States, including members of
42 the national guard and the state military reserve on active duty orders.

43 2. "Military installation" means a base, camp, post, station, yard,
44 center, homeport facility for any ship or other installation under the
45 jurisdiction of the United States department of defense or the United
46 States coast guard.

1 [3. "PARENT" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-761.]

2 ~~[3.]~~ [4.] "SERVICES OR ACCOMMODATIONS" MEANS ANY SERVICES OR
3 ACCOMMODATIONS THAT ARE PROVIDED THROUGH A LOCAL EDUCATION AGENCY PURSUANT
4 TO THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT (P.L. 91-260; 84 STAT.
5 175; 20 UNITED STATES CODE SECTIONS 1400 THROUGH 1482), SECTION 504 OF THE
6 REHABILITATION ACT OF 1973 (P.L. 93-112; 87 STAT. 355; 29 UNITED STATES
7 CODE SECTION 794) OR TITLE II OF THE AMERICANS WITH DISABILITIES ACT OF
8 1990 (P.L. 101-336; 104 STAT. 327; 42 UNITED STATES CODE SECTIONS 12131
9 THROUGH 12165).

10 Sec. 4. Section 15-824, Arizona Revised Statutes, is amended to
11 read:

12 15-824. Admission of pupils of other school districts;
13 homeless children; tuition charges; definitions

14 A. The governing board of a school district shall admit pupils from
15 another school district or area as follows:

16 1. On the presentation of a certificate of educational convenience
17 issued by the county school superintendent pursuant to section 15-825.

18 2. For three hundred fifty or fewer pupils, to a high school
19 without the presentation of a certificate of educational convenience, if
20 the pupil is a resident of a common school district within this state that
21 is not within a high school district and that does not offer instruction
22 in the pupil's grade. The three hundred fifty or fewer pupil limitation
23 prescribed in this paragraph does not apply to a small isolated school
24 district as defined in section 15-901. The school membership of such
25 pupils is deemed, for the purposes of determining student count and
26 providing a free and appropriate public education pursuant to the
27 individuals with disabilities education act (20 United States Code
28 chapter 33) and for apportionment of state aid, to be enrollment in the
29 school district of the pupil's attendance.

30 3. To a high school without the presentation of a certificate of
31 educational convenience if the pupil is a resident of a transporting
32 school district that does not offer instruction in the pupil's grade.
33 Tuition shall be charged as prescribed in subsection E of this section for
34 each pupil who is admitted pursuant to this paragraph. For the purposes
35 of determining student count and for apportionment of state aid, the
36 school membership of these pupils is deemed to be enrollment in the school
37 district of the pupil's residence.

38 B. The residence of the person having legal custody of the pupil is
39 considered the residence of the pupil, except as provided in subsection C
40 of this section and in section 15-825, ~~subsection~~ SUBSECTIONS B AND C.

41 C. The current residence of a homeless pupil who does not reside
42 with the person having legal custody of the pupil is considered to be the
43 residence of the homeless pupil if the person having legal custody of the
44 pupil is a resident of the United States. For the purposes of this
45 subsection, "homeless pupil" means a pupil who has a primary residence
46 that is:

1 1. A supervised publicly or privately operated shelter designed to
2 provide temporary living accommodations.

3 2. An institution that provides a temporary residence for
4 individuals intended to be institutionalized.

5 3. A public or private place not designed for, or ordinarily used
6 as, a regular sleeping accommodation for human beings.

7 D. The school enrollment of a pupil who is a resident of this state
8 or who is admitted to a school district under section 15-823, subsection
9 B, C, E, F or H is deemed, for the purpose of determining student count
10 and for apportionment of state aid, to be enrollment in the school
11 district of actual attendance, except as provided in section 15-825,
12 subsection A, paragraph 1 and subsection A, paragraph 3 of this section
13 and except for pupils for whom the superintendent of public instruction is
14 charged tuition pursuant to section 15-825, subsections B, C and ~~G~~ and
15 section 15-976 or for whom another school district is charged tuition as
16 provided in subsections E and G of this section.

17 E. If tuition is required to be charged for pupils attending school
18 in a school district other than that of their residence, the tuition shall
19 be determined and paid in the following manner:

20 1. The number of high school pupils for which tuition may be
21 charged to a transporting school district is equal to the average daily
22 membership in the district of attendance from the transporting school
23 district for the prior fiscal year. This number may be adjusted if the
24 transporting school district increases its revenue control limit and
25 district support level.

26 2. The tuition for pupils attending school in a school district
27 other than that of their residence, except pupils provided for by section
28 15-825, subsections B, C and ~~G~~ and any pupils included in the
29 definition of child with a disability in section 15-761, shall not exceed
30 the cost per student count of the school district attended, as determined
31 for the current school year. Tuition for pupils included in the
32 definition of child with a disability in section 15-761 shall not exceed
33 the actual cost of the school attended for each pupil as determined for
34 the current year. The school district of attendance shall not include in
35 the cost per student count a charge for transportation if no
36 transportation is provided, and the charge for transportation shall not
37 exceed the actual costs of providing transportation for the pupils served,
38 as prescribed in the uniform system of financial records. The school
39 district of attendance shall provide the school district of residence with
40 the final tuition charge for the current year and with an estimate of the
41 budget year's tuition charge by May 1 of the current year. The school
42 district of residence shall pay at least one-fourth of the total amount of
43 the estimated tuition by September 30, December 31 and March 31, and it
44 shall pay the remaining amount it owes after adjustments are made by
45 June 30.

1 3. Notwithstanding paragraph 2 of this subsection and subsection G
2 of this section, if two school districts enter into a voluntary agreement
3 for the payment of tuition, the agreement shall specify the method for
4 computing the tuition amount and the timing of the payments. The
5 agreement shall not be longer than five consecutive years. If two school
6 districts enter into an agreement and choose to renew the agreement, each
7 renewal shall not be longer than five consecutive years. The agreement
8 shall specify that a parent or legal guardian of a pupil affected by a
9 tuition agreement entered pursuant to this section or section 15-816.01
10 may choose not to send the pupil or pupils to a school district or school
11 that is a party to the agreement.

12 4. Tuition of pupils as provided in section 15-825, subsection ~~H~~ G
13 shall not exceed the excess costs for group B children with disabilities
14 minus the amount generated by the equalization base as determined in
15 section 15-971, subsection A for these pupils. A school district may
16 submit to the superintendent of public instruction a record of actual
17 excess costs to educate a group B child with a disability if the costs are
18 higher than the calculated excess costs or if a pupil has been placed in a
19 private school for special education services. The superintendent shall
20 determine if the additional costs will be paid, and if the costs are paid,
21 whether the additional costs will be paid by the state or the resident
22 district.

23 5. The amount received representing contributions to capital outlay
24 as provided in subsection G, paragraph 1, subdivision (b) of this section
25 shall be applied to the capital outlay fund or the debt service fund of
26 the school district.

27 6. The amount received representing contributions to debt service
28 as provided in subsection G, paragraph 1, subdivision (c) of this section
29 shall be applied to the debt service fund of the school district if there
30 is one. Otherwise the amount shall be credited to the capital outlay fund
31 of the school district.

32 F. A school district may submit to the superintendent of public
33 instruction a record of actual costs paid by the school district to
34 educate a pupil who qualifies for a certificate of educational convenience
35 under section 15-825, subsection B OR C. If the actual costs for that
36 pupil exceed the costs per student count computed pursuant to subsection G
37 of this section, the superintendent of public instruction shall reimburse
38 the school district for these additional costs subject to legislative
39 appropriation.

40 G. For the purposes of this section:

41 1. "Costs per student count" means the sum of the following for the
42 common or high school portion of the school district attended, whichever
43 is applicable to the pupil involved, as prescribed in the uniform system
44 of financial records:

1 (a) The actual school district expenditures for the regular
2 education program subsection of the maintenance and operation section of
3 the budget divided by the school district's student count for the common
4 or high school portion of the school district, whichever is applicable.

5 (b) The actual school district expenditures for the capital outlay
6 section of the budget as provided in sections 15-903 and 15-905 excluding
7 expenditures for transportation equipment and buildings if no
8 transportation is provided and expenditures for the acquisition of
9 building sites, divided by the school district's student count for the
10 common or high school portion of the school district, whichever is
11 applicable.

12 (c) The actual school district expenditures for debt service
13 divided by the school district's student count for the common or high
14 school portion of the school district, whichever is applicable.

15 2. "Legal custody" means:

16 (a) Custody exercised by the natural or adoptive parents with whom
17 a pupil resides.

18 (b) Custody granted by order of a court of competent jurisdiction
19 to a person or persons with whom a pupil resides unless the primary
20 purpose for which custody was requested was to circumvent the payment of
21 tuition as provided in this section.

22 Sec. 5. Section 15-825, Arizona Revised Statutes, is amended to
23 read:

24 15-825. Certificates of educational convenience; issuance;
25 effect on enrollment records; reporting
26 requirements; posting requirements; definitions

27 A. A pupil who is precluded by distance, lack of adequate
28 transportation facilities or a parent's or guardian's employment from
29 attending a school in the school district or county of the pupil's
30 residence or who resides in unorganized territory may apply to the pupil's
31 school district of residence or, for a pupil who resides in unorganized
32 territory, the school district of attendance for a certificate of
33 educational convenience. If a pupil who resides in unorganized territory
34 does not have a school district of attendance and seeks to ~~apply for a~~
35 ~~certificate of educational convenience~~ ENROLL IN A PUBLIC SCHOOL IN THIS
36 STATE, the pupil's parent shall ~~enroll the pupil in a school pursuant to~~
37 ~~article 1.1 of this chapter and apply to the school district that operates~~
38 ~~that school for a certificate of educational convenience~~ [CONTACT ANY
39 SCHOOL DISTRICT ADJOINING THE UNORGANIZED TERRITORY TO REQUEST ENROLLMENT
40 OF THE PUPIL. THE PARENT MAY] REQUEST ENROLLMENT OF THE PUPIL IN [AN
41 ADJOINING] [THE ADJOINING] SCHOOL DISTRICT [THAT IS GEOGRAPHICALLY CLOSEST
42 TO THE PUPIL'S RESIDENCE] BY SUBMITTING ONLINE ENROLLMENT PAPERWORK TO THE
43 SCHOOL DISTRICT, BY ATTEMPTING TO ENROLL THE PUPIL IN PERSON AT A SCHOOL
44 DISTRICT OFFICE OR AT A SCHOOL THAT IS OPERATED BY THE SCHOOL DISTRICT, OR
45 BY REQUESTING ENROLLMENT ASSISTANCE IN A TELEPHONIC, ELECTRONIC OR
46 IN-PERSON COMMUNICATION WITH THE SCHOOL DISTRICT OR A SCHOOL THAT IS
47 OPERATED BY THE SCHOOL DISTRICT. A school district that receives an

1 ~~application~~ A REQUEST FOR ENROLLMENT pursuant to this subsection shall
2 submit ~~the~~ A completed CERTIFICATE OF EDUCATIONAL CONVENIENCE application
3 FOR THE PUPIL to the county school superintendent electronically, in
4 person or by regular mail NOT LATER THAN FIVE BUSINESS DAYS AFTER
5 RECEIVING THE REQUEST [AND ANY REQUIRED DOCUMENTATION, EXCEPT THAT A
6 SCHOOL DISTRICT MAY SUBMIT THE APPLICATION BY REGULAR MAIL ONLY IF THE
7 SCHOOL DISTRICT CANNOT ELECTRONICALLY SUBMIT THE APPLICATION]. If it
8 appears to the county school superintendent that it is not feasible for
9 the pupil to attend a school in the school district or county of residence
10 ~~[OR THAT THE PUPIL RESIDES IN UNORGANIZED TERRITORY]~~, the county school
11 superintendent shall issue a certificate of educational convenience
12 authorizing the pupil to attend a school in an adjoining school district
13 or county, whether within or without this state. [A SCHOOL DISTRICT THAT
14 RECEIVES A REQUEST FOR ENROLLMENT OR AN APPLICATION FOR A CERTIFICATE OF
15 EDUCATIONAL CONVENIENCE PURSUANT TO THIS SUBSECTION MAY NOT DELAY CHILD
16 FIND ACTIVITIES, PARENTAL CONSENT FOR A SPECIAL EDUCATION EVALUATION OR
17 TIMELINES UNDER 34 CODE OF FEDERAL REGULATIONS SECTION 300.301 OR 300.323
18 BECAUSE A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION IS
19 PROCESSING.] If a certificate of educational convenience is issued as
20 provided in this subsection, the school enrollment of a pupil is as
21 follows:

22 1. The school enrollment of a pupil who is precluded from attending
23 a school in this state and who must attend school in another state, when
24 certified to the county school superintendent by the official in charge of
25 the school attended, is deemed for the purpose of determining student
26 count to be enrollment in the school of the county or school district of
27 the student's residence.

28 2. The school enrollment of a pupil from unorganized territory or
29 from another school district is deemed for the purpose of determining
30 student count to be enrollment in the school district of actual
31 attendance.

32 B. The county school superintendent of any county in which a pupil
33 is placed as described in this subsection shall issue a certificate of
34 educational convenience for the pupil to attend school in the school
35 district or adjoining school district to that in which the pupil is placed
36 by ~~an~~ A STATE PLACING agency ~~of this state~~ or a state or federal court of
37 competent jurisdiction IF THE PUPIL IS PLACED in one of the following:

38 1. A state rehabilitation or corrective institution.

39 2. A foster home or child care agency or institution that is
40 licensed and supervised by the department of child safety or the
41 department of health services.

42 3. A residential facility that is operated or supported by the
43 department of economic security or the department of health services.

44 4. Under the supervision of the department of juvenile corrections,
45 a residence pursuant to the interstate compact on juveniles.
46 Notwithstanding section 41-1959, the STATE placing agency, department or
47 institution shall provide the school district of attendance with the

1 necessary information to enable the district to obtain a certificate of
2 educational convenience pursuant to this subsection.

3 C. IF A PUPIL DESCRIBED IN SUBSECTION B OF THIS SECTION SEEKS TO
4 ENROLL IN THE SCHOOL DISTRICT OR ADJOINING SCHOOL DISTRICT TO THAT IN
5 WHICH THE PUPIL IS PLACED, THE PUPIL'S PARENT SHALL ~~[CONTACT THE SCHOOL~~
6 ~~DISTRICT TO]~~ REQUEST ENROLLMENT OF THE PUPIL~~[. THE PUPIL'S PARENT MAY~~
7 ~~REQUEST ENROLLMENT OF THE PUPIL IN AN ADJOINING SCHOOL DISTRICT]~~ BY
8 SUBMITTING ONLINE ENROLLMENT PAPERWORK TO THE SCHOOL DISTRICT, BY
9 ATTEMPTING TO ENROLL THE PUPIL IN PERSON AT A SCHOOL DISTRICT OFFICE OR AT
10 A SCHOOL THAT IS OPERATED BY THE SCHOOL DISTRICT, OR BY REQUESTING
11 ENROLLMENT ASSISTANCE IN A TELEPHONIC, ELECTRONIC OR IN-PERSON
12 COMMUNICATION WITH THE SCHOOL DISTRICT OR A SCHOOL THAT IS OPERATED BY THE
13 SCHOOL DISTRICT. A SCHOOL DISTRICT THAT RECEIVES A REQUEST FOR ENROLLMENT
14 PURSUANT TO THIS SUBSECTION:

15 1. SHALL SUBMIT A COMPLETED CERTIFICATE OF EDUCATIONAL CONVENIENCE
16 APPLICATION FOR THE PUPIL TO THE COUNTY SCHOOL SUPERINTENDENT
17 ELECTRONICALLY, IN PERSON OR BY REGULAR MAIL NOT LATER THAN FIVE BUSINESS
18 DAYS AFTER RECEIVING THE REQUEST AND ANY REQUIRED DOCUMENTATION~~[. EXCEPT~~
19 ~~THAT A SCHOOL DISTRICT MAY SUBMIT THE APPLICATION BY REGULAR MAIL ONLY IF~~
20 ~~THE SCHOOL DISTRICT CANNOT ELECTRONICALLY SUBMIT THE APPLICATION].~~

21 2. IS RESPONSIBLE FOR ALL CHILD FIND ACTIVITIES FOR THE PUPIL.

22 3. IS RESPONSIBLE FOR PROVIDING A FREE APPROPRIATE PUBLIC EDUCATION
23 TO THE PUPIL IF THE PUPIL IS A CHILD WITH A DISABILITY AS DEFINED IN
24 SECTION 15-761.

25 ~~[4. MAY NOT DELAY CHILD FIND ACTIVITIES, PARENTAL CONSENT FOR A~~
26 ~~SPECIAL EDUCATION EVALUATION OR TIMELINES UNDER 34 CODE OF FEDERAL~~
27 ~~REGULATIONS SECTION 300.301 OR 300.323 BECAUSE A CERTIFICATE OF~~
28 ~~EDUCATIONAL CONVENIENCE APPLICATION IS PROCESSING.]~~

29 D. BEFORE FISCAL YEAR 2027-2028, EACH STATE PLACING AGENCY SHALL
30 DEVELOP A FORM TO ATTEST THAT A PUPIL IS PLACED IN ONE OF THE PLACEMENTS
31 DESCRIBED IN SUBSECTION B OF THIS SECTION. ON REQUEST, A STATE PLACING
32 AGENCY SHALL COMPLETE THE FORM FOR THE PUPIL AND PROVIDE THE COMPLETED
33 FORM TO THE REQUESTING PARTY. THE REQUESTING PARTY MAY SUBMIT THE
34 COMPLETED FORM WITH A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION
35 TO THE COUNTY SCHOOL SUPERINTENDENT AS EVIDENCE OF THE PUPIL'S ELIGIBILITY
36 FOR A CERTIFICATE OF EDUCATIONAL CONVENIENCE PURSUANT TO SUBSECTION B OR C
37 OF THIS SECTION.

38 E. IF A PUPIL DESCRIBED IN SUBSECTION B OF THIS SECTION IS
39 PARENTALLY PLACED IN A PRIVATE SCHOOL OR ATTENDS A HOMESCHOOL, THE PUPIL
40 RETAINS THE RIGHTS ESTABLISHED BY 20 UNITED STATES CODE SECTION 1412,
41 INCLUDING THE RIGHTS TO BE IDENTIFIED, LOCATED AND EVALUATED FOR
42 ELIGIBILITY UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION
43 ACT, AND THE RIGHT TO EQUITABLE SERVICES UNDER PROPORTIONATE SHARE FUNDING
44 PURSUANT TO 34 CODE OF FEDERAL REGULATIONS SECTIONS 300.130 THROUGH
45 300.144. THE SCHOOL DISTRICT ~~[OR ADJOINING SCHOOL DISTRICT TO THAT]~~ IN
46 WHICH THE PUPIL IS PLACED IS RESPONSIBLE FOR IDENTIFYING, LOCATING AND

1 EVALUATING THE PUPIL AND FOR PROVIDING EQUITABLE SERVICES UNDER
2 PROPORTIONATE SHARE FUNDING TO THE PUPIL.

3 ~~F.~~ F. A pupil attending school under a certificate of educational
4 convenience issued pursuant to subsection B OR C of this section is deemed
5 for the purpose of determining student count to be enrolled in the school
6 district of attendance. The county school superintendent of any county
7 shall not issue a certificate of educational convenience as provided in
8 subsection B OR C of this section if the pupil is placed in the same
9 district of the pupil's parents' or legal guardians' residence or if the
10 pupil is placed without a court order and the pupil's parents or legal
11 guardians are not residents of this state.

12 ~~G.~~ G. If a certificate of educational convenience is issued as
13 provided in subsection B OR C of this section, or for a pupil whose parent
14 or guardian is employed and domiciled by a state institution as prescribed
15 by section 15-976, tuition may be charged as follows:

16 1. For group B children with disabilities:

17 (a) Who are from unorganized territory, whose parent or guardian is
18 employed by a state institution as prescribed by section 15-976 or who
19 have been issued a certificate of educational convenience pursuant to
20 subsection B OR C of this section, the superintendent of public
21 instruction shall reimburse the district of attendance for the excess
22 costs as provided in section 15-824, subsection E, paragraph 4.

23 (b) Who are from another school district, the school district of
24 residence shall reimburse the district of attendance for the excess costs
25 as provided in section 15-824, subsection E, paragraph 4.

26 2. For pupils who are precluded from attending a school in this
27 state and who must attend a school in another state:

28 (a) If the pupil resides in a school district in this state, the
29 district of residence shall pay the amount charged by the district of
30 attendance.

31 (b) If the pupil resides in unorganized territory, the
32 superintendent of public instruction shall pay the amount charged by the
33 district of attendance.

34 ~~H.~~ H. The county school superintendent who issues a certificate of
35 educational convenience shall notify the superintendent of public
36 instruction of the issuance of the certificate. The superintendent of
37 public instruction shall draw a warrant in favor of the school district of
38 actual attendance for the amount charged, whether for common or high
39 school attendance, as provided in section 15-824.

40 ~~I.~~ I. The total amount of state monies that may be spent in any
41 fiscal year by the superintendent of public instruction for certificates
42 of educational convenience shall not exceed the amount appropriated or
43 authorized by section 35-173 for that purpose. This section does not
44 impose a duty on an officer, agent or employee of this state to discharge
45 a responsibility or create any right in a person or group if the discharge
46 or right would require an expenditure of state monies in excess of the

1 expenditure authorized by legislative appropriation for that specific
2 purpose.

3 J. EACH COUNTY SCHOOL SUPERINTENDENT SHALL:

4 1. NOT LATER THAN FIVE BUSINESS DAYS AFTER RECEIVING A CERTIFICATE
5 OF EDUCATIONAL CONVENIENCE APPLICATION PURSUANT TO THIS SECTION, EITHER:

6 (a) ISSUE A CERTIFICATE OF EDUCATIONAL CONVENIENCE AUTHORIZING THE
7 PUPIL TO ATTEND THE SCHOOL DISTRICT THAT IS IDENTIFIED IN THE APPLICATION
8 AND NOTIFY THE SCHOOL DISTRICT AND THE PUPIL'S PARENT THAT THE CERTIFICATE
9 HAS BEEN ISSUED.

10 (b) NOTIFY IN WRITING THE SCHOOL DISTRICT THAT IS IDENTIFIED IN THE
11 APPLICATION AND THE PUPIL'S PARENT THAT THE COUNTY SCHOOL SUPERINTENDENT
12 IS NOT ISSUING A CERTIFICATE OF EDUCATIONAL CONVENIENCE FOR THE PUPIL.
13 THE NOTIFICATION REQUIRED BY THIS SUBDIVISION MUST EXPLAIN THE REASON THE
14 COUNTY SCHOOL SUPERINTENDENT IS DECLINING TO ISSUE A CERTIFICATE OF
15 EDUCATIONAL CONVENIENCE AND INSTRUCTIONS FOR CURING DEFICIENCIES IN THE
16 APPLICATION.

17 ~~G. 2.~~ On or before January 1 of each year, ~~each county school~~
18 ~~superintendent shall~~ report to the department of education the total
19 number of certificates of educational convenience that the county school
20 superintendent issued pursuant to subsection A of this section during the
21 previous calendar year and the total number of certificates of educational
22 convenience that the county school superintendent issued pursuant to
23 subsection B OR C of this section during the previous calendar year.

24 [3. BEFORE FISCAL YEAR 2027-2028, DEVELOP AND MAKE PUBLICLY
25 AVAILABLE A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION FORM AND
26 INSTRUCTIONS FOR SUBMITTING THE APPLICATION FORM. A COUNTY SCHOOL
27 SUPERINTENDENT MAY DEVELOP AN ONLINE APPLICATION PORTAL FOR THE PURPOSES
28 OF THIS PARAGRAPH IF THE PORTAL ALLOWS ANY PERSON WHO MAY SUBMIT AN
29 APPLICATION PURSUANT TO THIS SECTION, INCLUDING A SCHOOL DISTRICT, A
30 PUPIL, A PUPIL'S PARENT, A STATE PLACING AGENCY OR A PUPIL'S LEGAL
31 REPRESENTATIVE, TO SUBMIT AN APPLICATION THROUGH THE PORTAL.]

32 ~~H.~~ K. The department of education shall maintain the reports
33 received under subsection ~~G.~~ J, PARAGRAPH 2 of this section AND SHALL POST
34 THE REPORTS ON THE DEPARTMENT'S WEBSITE.

35 L. EACH SCHOOL DISTRICT IN THIS STATE [THAT ADJOINS AN UNORGANIZED
36 TERRITORY] SHALL:

37 1. INCLUDE A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION
38 FORM AND INSTRUCTIONS REGARDING SUPPORTING DOCUMENTATION WITH PROOF OF
39 RESIDENCY DOCUMENTATION REQUIREMENTS IN ENROLLMENT PACKETS.

40 2. POST ON THE SCHOOL DISTRICT'S WEBSITE BOTH OF THE FOLLOWING:

41 (a) THE FORM AND INSTRUCTIONS DESCRIBED IN PARAGRAPH 1 OF THIS
42 SUBSECTION.

43 (b) INSTRUCTIONS FOR PARENTS WHO ELECT TO SUBMIT THE APPLICATIONS
44 TO THE COUNTY SCHOOL SUPERINTENDENT.

45 M. ENROLLMENT IS GUARANTEED FOR ANY PUPIL FOR WHOM A CERTIFICATE OF
46 EDUCATIONAL CONVENIENCE IS ISSUED PURSUANT TO THIS SECTION AND IS NOT
47 SUBJECT TO PROGRAMMATIC CAPACITY LIMITATIONS.

1 N. THE DEPARTMENT OF EDUCATION SHALL:

2 1. DEVELOP AND ADOPT A CLEAR, WRITTEN POLICY THAT IDENTIFIES A
3 [SUPPLEMENTAL] PROCESS FOR PROMPT RESOLUTION OF DISPUTES BETWEEN COUNTY
4 SCHOOL SUPERINTENDENTS, PARENTS OF PUPILS AND LOCAL EDUCATION AGENCIES,
5 RELATING TO ANY OF THE FOLLOWING:

6 (a) APPLICATIONS FOR ENROLLMENT OF PUPILS PURSUANT TO THIS SECTION.

7 (b) THE PROVISION OF SERVICES REQUIRED PURSUANT TO THIS CHAPTER AND
8 CHAPTER 7, ARTICLE 4 OF THIS TITLE.

9 (c) FUNDING FOR A PUPIL'S EDUCATION PURSUANT TO THIS SECTION.

10 (d) DENIALS OR DELAYS OF ANY OF ITEMS LISTED IN SUBDIVISION (a),
11 (b) OR (c) OF THIS PARAGRAPH.

12 2. ENSURE ~~[THAT BOTH]~~ [ALL OF THE FOLLOWING]:

13 (a) ~~[THAT]~~ ANY DISPUTE ARISING UNDER THIS SECTION IS DECIDED NOT
14 LATER THAN TEN BUSINESS DAYS AFTER THE DISPUTE RESOLUTION PROCESS IS
15 INITIATED.

16 (b) ~~[THAT]~~ A PUPIL IS ENROLLED IN A ~~[LOCAL EDUCATION AGENCY]~~
17 [SCHOOL DISTRICT] AND RECEIVES SERVICES PURSUANT TO THIS CHAPTER AND
18 CHAPTER 7, ARTICLE 4 OF THIS TITLE WHILE THE DISPUTE IS PENDING.

19 [(c) THAT THE DISPUTE RESOLUTION PROCESS DOES NOT LIMIT OR DELAY A
20 PUPIL'S OR PARENT'S ACCESS TO THE STATE COMPLAINT PROCESS OR DUE PROCESS
21 PROCEDURES UNDER THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT (20
22 UNITED STATES CODE SECTIONS 1401 THROUGH 1485).]

23 3. INVESTIGATE ANY ~~[SUBSTANTIATED CLAIMS OR]~~ COMPLAINTS ~~[THAT]~~ THE
24 DEPARTMENT RECEIVES THAT ALLEGE THAT A ~~[PERSON]~~ [POLITICAL SUBDIVISION OR
25 AGENCY] IS VIOLATING THIS SECTION OR SECTION 15-768.

26 4. ANNUALLY COMPILE A REPORT REGARDING INVESTIGATIONS PURSUANT TO
27 PARAGRAPH 3 OF THIS SUBSECTION AND ANY CORRECTIVE ACTIONS TAKEN IN THE
28 IMMEDIATELY PRECEDING YEAR AND POST THE REPORT ON THE DEPARTMENT'S
29 WEBSITE.

30 [O. SUBSECTIONS A AND C OF THIS SECTION DO NOT PRECLUDE A PUPIL, A
31 PUPIL'S PARENT, A STATE PLACING AGENCY, A PUPIL'S LEGAL REPRESENTATIVE OR
32 ANY OTHER INTERESTED PARTY FROM SUBMITTING AN APPLICATION FOR A
33 CERTIFICATE OF EDUCATIONAL CONVENIENCE FOR THE PUPIL TO THE COUNTY SCHOOL
34 SUPERINTENDENT.]

35 ~~[O.]~~ [P.] FOR THE PURPOSES OF THIS SECTION:

36 1. "CHILD FIND" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-768.

37 2. "FREE APPROPRIATE PUBLIC EDUCATION" HAS THE SAME MEANING
38 PRESCRIBED IN SECTION 15-768.

39 3. "PARENT" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-761.

40 4. "STATE PLACING AGENCY" HAS THE SAME MEANING PRESCRIBED IN
41 SECTION 15-1181.

42 5. "UNORGANIZED TERRITORY" MEANS A GEOGRAPHIC AREA THAT IS NOT
43 LOCATED WITHIN THE BOUNDARIES OF ANY SCHOOL DISTRICT.

1 Sec. 6. Section 15-944, Arizona Revised Statutes, is amended to
2 read:

3 15-944. Base revenue control limit

4 A. The base revenue control limit for each school district for
5 fiscal year 1980-1981 is computed as follows:

6 1. Add the amounts in the fiscal year 1979-1980 budget effective
7 May 15, 1980 for general operating and special education.

8 2. Subtract the following budgeted revenues from the sum obtained
9 in paragraph 1 of this subsection:

10 (a) Tuition paid for attendance of nonresident pupils.

11 (b) State assistance as provided in section 15-976.

12 (c) Special education revenues as provided in section 15-825,
13 subsection ~~F~~ G and section 15-1204.

14 (d) Proceeds from the sale or lease of school property as provided
15 in section 15-1102.

16 3. Add the increase in the base support level from fiscal year
17 1979-1980 to fiscal year 1980-1981 to the difference obtained in paragraph
18 2 of this subsection.

19 B. The equalization factor for each school district is computed as
20 follows:

21 1. Divide the sum obtained in subsection A, paragraph 3 of this
22 section by the base support level for fiscal year 1980-1981.

23 2. Subtract 1.0 from the quotient obtained in paragraph 1 of this
24 subsection to obtain the equalization factor.

25 C. The revenue variation factor for each fiscal year is as follows:

26 1. For fiscal year 1981-1982, 0.80.

27 2. For fiscal year 1982-1983, 0.60.

28 3. For fiscal year 1983-1984, 0.40.

29 4. For fiscal year 1984-1985, 0.20.

30 D. The base revenue control limit for each school district during
31 the five years in which the equalization plan is in operation is computed
32 as follows:

33 1. Multiply the equalization factor by the revenue variation factor
34 for the applicable year. Beginning with fiscal year 1983-1984 if the
35 resulting product is less than negative 0.08, use negative 0.08 for
36 computation purposes as provided in paragraph 2 of this subsection.

37 2. Multiply the product obtained in paragraph 1 of this subsection
38 by the base support level for the applicable year.

39 3. Add the base support level for the applicable year to the
40 product obtained in paragraph 2 of this subsection.

41 E. For fiscal year 1985-1986 and each fiscal year thereafter, the
42 base revenue control limit equals the base support level for the same
43 fiscal year.

1 Sec. 7. Section 15-947, Arizona Revised Statutes, is amended to
2 read:

3 15-947. Revenue control limit; district support level;
4 general budget limit; unrestricted total capital
5 budget limit; district additional assistance limit

6 A. The revenue control limit for a school district is equal to the
7 sum of the base revenue control limit determined in section 15-944 and the
8 transportation revenue control limit determined in section 15-946.

9 B. The district support level for a school district is equal to the
10 sum of the base support level determined in section 15-943 and the
11 transportation support level determined in section 15-945.

12 C. The general budget limit for each school district, for each
13 fiscal year, is the sum of the following:

14 1. The maintenance and operations portion of the revenue control
15 limit for the budget year.

16 2. The maintenance and operation portion of the following amounts:

17 (a) Amounts that are fully funded by revenues other than a levy of
18 taxes on the taxable property within the school district, as listed below:

19 (i) Amounts budgeted as the budget balance carryforward as provided
20 in section 15-943.01.

21 (ii) Tuition revenues for attendance of nonresident pupils.

22 (iii) State assistance as provided in section 15-976.

23 (iv) Special education revenues as provided in section 15-825,
24 subsection ~~D~~ G and section 15-1204.

25 (v) Title VIII of the elementary and secondary education act of
26 1965 assistance determined for children with disabilities, children with
27 specific learning disabilities, children residing on Indian lands and
28 children residing within the boundaries of an accommodation school that is
29 located on a military reservation and that is classified as a heavily
30 impacted local educational agency pursuant to 20 United States Code
31 section 7703 as provided in section 15-905, subsections K and O.

32 (vi) Title VIII of the elementary and secondary education act of
33 1965 administrative costs as provided in section 15-905, subsection P.

34 (vii) State assistance for excess tuition as provided in section
35 15-825.01.

36 (viii) Transportation revenues for attendance of nonresident
37 pupils.

38 (b) Amounts approved pursuant to an override election as provided
39 in section 15-481 for the applicable fiscal year.

40 (c) Amounts authorized by the county school superintendent pursuant
41 to section 15-974, subsection B.

42 (d) Expenditures for complying with a court order of desegregation
43 as provided in section 15-910.

44 (e) Interest on registered warrants or tax anticipation notes as
45 provided in section 15-910.

1 (f) Amounts budgeted for a jointly owned and operated career and
2 technical education and vocational education center as provided in section
3 15-910.01.

4 3. The maintenance and operations portion of district additional
5 assistance for the budget year.

6 4. Any other budget item that is budgeted in the maintenance and
7 operation section of the budget and that is specifically exempt from the
8 revenue control limit or district additional assistance.

9 D. The unrestricted capital budget limit, for each school district
10 for each fiscal year, is the sum of the following:

11 1. The federal impact adjustment as determined in section 15-964
12 for the budget year.

13 2. Any other budget item that is budgeted in the capital outlay
14 section of the budget and that is specifically exempt from district
15 additional assistance.

16 3. The unrestricted capital portion of the amounts contained in
17 subsection C of this section.

18 4. The unexpended budget balance in the unrestricted capital outlay
19 fund from the previous fiscal year.

20 5. The net interest earned in the unrestricted capital outlay fund
21 from the previous fiscal year.

22 Sec. 8. Section 15-976, Arizona Revised Statutes, is amended to
23 read:

24 15-976. Assistance for school districts for children whose
25 parents are employed by certain state institutions;
26 expenditure limitation

27 A. The superintendent of public instruction shall assist school
28 districts in educating children whose parents or legal guardians are
29 employed by and domiciled at the following state institutions and
30 stations: the state hospital, the Arizona state schools for the deaf and
31 the blind, intellectual disability centers, port of entry inspection
32 stations and institutions and facilities maintained by the state
33 department of corrections. The school enrollment is deemed for the
34 purpose of determining student count to be enrollment in the school
35 district of actual attendance. The assistance shall be by payment of
36 tuition as follows:

37 1. For group B children with disabilities, as provided in section
38 15-825, subsection ~~D~~ G.

39 2. For children other than group B children with disabilities, the
40 costs per student count as prescribed in section 15-824, subsection G
41 minus the amount generated by the equalization base as determined in
42 section 15-971, subsection A for those pupils, except that the tuition for
43 any pupil shall not exceed an amount equal to ~~seven thousand dollars~~
44 \$7,000 minus the amount generated by the equalization base as determined
45 in section 15-971, subsection A.

1 B. Claims for such payments shall be made by the school districts
2 through the county school superintendent to the superintendent of public
3 instruction.

4 C. The total amount of state monies that may be spent in any fiscal
5 year by the superintendent of public instruction pursuant to subsection A
6 of this section shall not exceed the amount appropriated or authorized by
7 section 35-173 for that purpose. This section ~~shall~~ DOES not ~~be construed~~
8 ~~to~~ impose a duty on an officer, agent or employee of this state to
9 discharge a responsibility or ~~to~~ create any right in a person or group if
10 the discharge or right would require an expenditure of state monies in
11 excess of the expenditure authorized by legislative appropriation for that
12 specific purpose."

13 Enroll and engross to conform

14 Amend title to conform

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